

20.07.2024

ORDERS ON IA No.2 and 3

Decree Holder has filed the I.A.2 under order XXI Rule 64 & 66 r/w Section 151 of CPC and I.A. No.3 U/o VII Rule 14(3) r/w sec. 151 of CPC produced the photographs and CD.

Decree holder has stated in his affidavit that he has filed the O.S. No.3592/2022 against the Jdr. After recording the evidence court has passed the order directing the Jdr to pay the arrears of rent of Rs.1,38,000/- along with future interest at the rate of 18% per annum and also directed to hand over the vacant possession of suit premises to the Dhr/plaintiff within three months.

He has stated as per the order of court with the police help issued the delivery warrant and he has taken possession of the suit premises on 27.02.2024. Therefore Jdr has not taken the movables which is in the suit premises. Therefore he prays to auction the above said immovables of Jdr and which he has not paid the amount.

After passing the judgment, that the decree holder nor judgment debtor nor this court received any order from Hon'ble High Court of Karnataka. Then the above said Execution petition filed by the Dhr seeking an amount of

Rs.1,99,050/- and also to attach and sale of movables of Jdr.

After filing the above said petition court has issued the notice to Jdr. In turn he has appeared through his counsel. After receiving the delivery warrant that the Jdr nor his counsel has not appeared. Then with the help of police court bailiff was gave the possession of suit premises. Now the I.A. No.2 filed by the Dhr to attach the item Nos.1 to 8 and sale through public auction as he was aged about 82 years. Inspite of court decree Jdr has not taken the item Nos.1 to 8. To get the fruits of decree that the Jdr has not paid the entire amount nor he has gave the possession of suit premises after removing his movables. As per the bailiff report that the item Nos.1 to 8 were not taken by the Jdr. However now he wanted to sell the above said items mentioned in the mahazar of bailiff dated 27.2.2024 in public auction and to get the said amount as well as suit premises.

On perusal of the said mahazar as well as report of the bailiff, with the help of police opened the suit premises and at that time there is one old whirlpool air conditioner, wall mount fan, two black steel chairs, one sofa set, one glass tea table, two God's photos, one table containing glass. So also one CCTV and he has

mentioned the said properties were in the said house. Now the decree holder wants to sell those articles in the public auction and get the amount as prayed in the petition. On perusal of the records as well as in the affidavit of the Dhr that Jdr has not paid the entire amount nor he has removed the said articles from the said place. Under such circumstances to get the amount as prayed in the petition and also to get the property it is just and necessary to sell the above said properties in the public auction after following the procedures contemplated in the above said provision. Even after service of notice Jdr has not filed the objection to I.A. No.2. Under such circumstances I am of the view that it is just and necessary to allow the I.A. No.2. Hence, I.A. is to be allowed in the interest of justice and equity and I proceed to pass the following:

ORDER

I.A.2 under order XXI Rule 64 &
66 r/w Section 151 of CPC and I.A.
No.3 U/o VII Rule 14(3) r/w sec. 151 of
CPC is hereby allowed.

For further steps, Call on

sd/-
LXII Addl. City Civil & Sessions
Judge, Bengaluru.